

103	D. vs. Seashore Academy, LLC 24-01384607	Motion for Leave to File First Amended Complaint Plaintiff KELLY DOOLEY, as Guardian ad litem for her minor child Z.D (“Plaintiff”), will and hereby does move the Court pursuant to CCP §§ 473(a)(1) and 576, and in full compliance with CRC, Rule 3.1324, for an order granting Plaintiff leave to file a First Amended Complaint (“FAC”). Motion is GRANTED. [CCP§473(a)(1); CRC, Rule 3.1324.] Plaintiff to separately file the First Amended Complaint. Plaintiff to give notice. Notably, denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendments opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. (Estate of Murphy v. Gulf Ins. Co. (1978) 82 Cal.App.3d 304, 311.) In this instance, Plaintiff’s Complaint containing six (6) causes of action was filed on 3/6/2024. On 11/3/2025, Plaintiff substituted in new counsel, Michael A. Trauben, of Singh, Singh and Trauben, LLP. Mr. Trauben declares, “The facts giving rise to the amended allegations were discovered by successor counsel after the firm’s substitution into this matter on November 3, 2025. Upon a thorough review of the file, the deposition testimony, and Defendant’s own admissions concerning its unlicensed status and business operations, it became clear that the existing factual allegations amply support the additional legal theory under the Unruh Civil Rights Act. (Decl. of Trauben¶5.) Thereafter, despite having knowledge of the alleged need for the addition of a Violation of Ca Civ Code§51
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		cause of action to the Complaint, Plaintiff waited to file this motion until 4/14/2026 (five months later.) Yet, Attorney Trauben explains the delay in ¶ 6 of his declaration wherein he states that he resides in Pacific Palisades and the fire rendered his home uninhabitable to the extent that he had to relocate and significant time was spent on contractor coordination, temporary housing logistics, and family support. Additionally, both of his sons sustained injuries to their ACLs. While the Court certainly sympathizes with Mr. Trauben, it is unclear why he would take the case given his personal situation. Also, it is unclear why someone else in the firm was incapable of filing this Motion. Nevertheless, no real prejudice exists. Trial is set for 11/9/2026. Defense counsel has been aware of the potential cause of action since April 2026. Defendant has had sufficient time to prepare any defense it may have to this cause of action (which is based on the same facts as the other causes of action). Furthermore, discovery is ongoing. An IDC is set for July 2026. To the extent any prejudice exists to Defendant, it may be mitigated by briefly continuing the trial. Plaintiff to separately file the First Amended Complaint. Plaintiff to give notice.
104	Rodriguez vs. Roline Express Inc. 25-01463168	1. Motion to Be Relieved as Counsel of Record x 3 2. Case Management Conference Cedric Severino (“Moving Attorney”) moves to be relieved as counsel of record for Roline Express, Inc., Andrea Albescu, and Lucian Boicu. The motions are unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules